

Gerald,

Thanks for reminding me about where we stand on this issue. I sent John the draft affidavit and I think the best course is to wait for his response. If he asks about matters other than the draft, I'll have to check with the client and get back to him. That will give us time to formulate our response.

Bill

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>>> <Gerald.Nemec@enron.com> 07/23/01 10:16AM >>>

Bill, The contract itself does not have a confidentiality clause, but per Jeff Stone's email, Gulf does consider the contract proprietary information and does not want this info voluntarily disclosed at this time. I forwarded the email to you earlier.

Concerning the emails etc., as I mentioned before, ECS has a copy of a Confidentiality Agreement that we executed by Gulf, initialed by me as ECS attorney, but not signed by an officer of ECS. Our business guys think we executed this agreement. This CA would cover all information exchanged between Gulf and ECS. I have asked Russell Badder's to check with Gulf to obtain an executed copy. Nothing in the CA agreements prohibit me from disclosing the CA. So we could potentially provide the copy of the CA we have to John. Obviously the correspondence between ECS and Gulf contains the commercial terms of our power deal as we negotiated with Gulf. Given Jeff's email and the CA copy I have in hand, I would not want to disclose the emails and memo's without Gulf's explicit permission. Let me know if you have any ideas on the best way to approach this with WFLA.

-----Original Message-----

From: "Bill L. Bryant" <BILL@katzlaw.com>@ENRON
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Sent: Sunday, July 22, 2001 1:06 PM
To: Nemec, Gerald
Subject: WFLA

Gerald,

Where are we in the process of gathering e-mails and other discovery that may be responsive to WFLA's request? Also, can I tell John Haswell that our contract with Gulf does contain a confidentiality clause? We discussed this but I can't remember if we agreed that I could disclose it.

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